

BREYER, J., dissenting

tainee in solitary confinement); *Papa v. United States*, 281 F. 3d 1004, 1010–1011 (CA9 2002) (due process claims arising from death of immigration detainee); *Loe v. Armistead*, 582 F. 2d 1291, 1293–1296 (CA4 1978) (detainee’s claim of deliberate indifference to medical need). If an arrestee can bring a claim of excessive force (*Bivens* itself), and a convicted prisoner can bring a claim for denying medical care (*Carlson*), someone who has neither been charged nor convicted with a crime should also be able to challenge abuse that causes him to need medical care.

Nor has Congress suggested that it wants to withdraw a damages remedy in circumstances like these. By its express terms, the Prison Litigation Reform Act of 1995 (PLRA) does not apply to immigration detainees. See 42 U. S. C. § 1997e(h) (“[T]he term ‘prisoner’ means any person incarcerated or detained in any facility who is accused of, convicted of, sentenced for, or adjudicated delinquent for, violations of criminal law . . . ”); see also *Agyeman v. INS*, 296 F. 3d 871, 886 (CA9 2002) (“[W]e hold that an alien detained by the [Immigration and Naturalization Service] pending deportation is not a ‘prisoner’ within the meaning of the PLRA”); *LaFontant v. INS*, 135 F. 3d 158, 165 (CA11 1998) (same); *Ojo v. INS*, 106 F. 3d 680, 683 (CA5 1997) (same). And, in fact, there is strong evidence that Congress assumed that *Bivens* remedies would be available to prisoners when it enacted the PLRA—*e. g.*, Congress continued to permit prisoners to recover for physical injuries, the typical kinds of *Bivens* injuries. See 28 U. S. C. § 1346(b)(2); Pfander, *Constitutional Torts*, at 105–106.

If there were any lingering doubt that the claim against Warden Hasty arises in a familiar *Bivens* context, the Court has made clear that conditions-of-confinement claims and medical-care claims are subject to the same substantive standard. See *Hudson v. McMillian*, 503 U. S. 1, 8 (1992) (“[*Wilson v. Seiter*, 501 U. S. 294, 303 (1991)] extended the deliberate indifference standard applied to Eighth Amend-